

Court No. - 2

Case :- WRIT - C No. - 2654 of 2022

Petitioner :- Ritesh Kumar Singh

Respondent :- Madhyanchal Vidyut Vitran Nigam Ltd. Thru.
Its Chief Engineer Hardoi And Others

Counsel for Petitioner :- Anuj Dayal, Ankit Kumar Trivedi

Counsel for Respondent :- Amit Sharma, C.S.C.

Hon'ble Devendra Kumar Upadhyaya, J.

Hon'ble Brij Raj Singh, J.

Heard learned counsel for the petitioner and Sri Amit Sharma, learned counsel representing Madhyanchal Vidyut Vitran Nigam Ltd.

By means of this petition, the petitioner has challenged the validity of the recovery certificate dated 12.04.2022 issued for recovery of certain amount due against him on account of non payment of electricity dues in relation to commercial electricity connection.

Uttar Pradesh Electricity Supply Code, 2005 provides an adequate remedy to a consumer in case he disputes bills and arrears. As per Clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005, the consumer may make a complaint about the discrepancies in the bills.

We are, thus, not inclined to entertain this petition, which is **disposed of** with liberty to the petitioner to approach the authority concerned in terms of Clause 6.5 of Uttar Pradesh Electricity Supply Code, 2005 within a week. In case any such application is moved by the petitioner, the same shall be considered and decided by the authority concerned within next four weeks.

We may make it clear that we have not made any observations as to the merits of the claim of the parties.

Order Date :- 16.5.2022

Renu/-